certificate should be valid from the date of completion of the
renewal survey to a date not exceeding five years from the date
of completion of the renewal survey
. 3 If a certificate is issued for a period of less than five years, the

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SOURCE: MSC.38(63).pdf
certificate should be valid from the date of completion of the
renewal survey to a date not exceeding five years from the date
of completion of the renewal survey
. 3 If a certificate is issued for a period of less than five years, the
Administration may extend the validity of the certificate beyond the
expiry date to the maximum period specified in 1.6.11.1, provided
that the surveys when a certificate is issued for a period of 5
years are carried out.

.4 If a renewal survey has been completed and a new certificate cannot
be issued or placed on board the unit before the expiry date of the
existing certificate, the person or organization authorized by the
Administration may endorse Lhe exlsLing cel"tificate and such a
certificate should be accepted as valid for a further p~riod which
should not exceed 5 months from the expiry date .
. 5 If a unit at the time when a certificate expires is not in the place

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SOURCE: MSC.38(63).pdf
certificate should be accepted as valid for a further p~riod which
should not exceed 5 months from the expiry date .
. 5 If a unit at the time when a certificate expires is not in the place
in which it is to be surveyed, the Administration may extend the
period of validity of the certificate but this extension shall be
granted only for the purpose of allowing the unit to proceed to the
place in which it is to be surveyed, and then only in cases where it
i:1J:lJ:l~i:U"t; prupel awl reasuIlavle to do so. No certificate shall be
extended for a period longer than three months, and a unit to which
an extension is granted should not, on its arrival in the place in
which it is to be surveyed, be entitled by virtue of such extension
to leave that place without having a new certificate. When the
renewal survey is completed, the new certificate shall be valid to a
date not exceeding 5 years from the date of expiry of the existing
certificate before the extension was granted
. 6 In special circumstances, as determined by the Administration, a new
certificate need not be dated from the date of expiry of the
existing certificate as required by 1.6.11.2.2 or 1.6.11.5. In

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SOURCE: MSC.38(63).pdf
certificate before the extension was granted
. 6 In special circumstances, as determined by the Administration, a new certificate need not be dated from the date of expiry of the existing certificate as required by 1.6.11.2.2 or 1.6.11.5. In these circumstances, the new certificate shall be valid to a date not exceeding five years from the date of completion of the renewal survey
. 7 If an annual or intermediate survey is completed before the period specified in the relevant regulations then:
.7.1 the anniversary date shown on the relevant certificate should be amended by endorsement to a date which should not be more than three months later than the date on which the survey was completed;
.7.2 the subsequent annual or intermediate survey required by the relevant regulations should be completed at the intervals prescribed by this regulation using the new anniversary date;
.7.3 the expiry date may remain unchanged provided one or more annual or intermediate surveys, as appropriate, are carried out so that the maximum intervals between the surveys prescribed by 1.6.1.3 and 1.6.1.4 are not exceeded

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SOURCE: MSC.38(63).pdf
.7.3 the expiry date may remain unchanged provided one or more annual or intermediate surveys, as appropriate, are carried out so that the maximum intervals between the surveys prescribed by 1.6.1.3 and 1.6.1.4 are not exceeded
. 8 A certificate issued under 1.6.7 or 1.6.9 shall cease to be valid in any of the following cases:
.8.1 if the relevant surveys are not completed within the periods specified in 1.6.1;
.8.2 if the certificate is not endorsed in accordance with 1.6.3.
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RESOLUTION MSC.38(63)
(adopted on 19 May 1994)
ADOPTION OF AMENDMENTS TO THE CODE FOR THE CONSTRUCTION AND EQUIPMENT OF MOBILE OFFSHORE DRILLING UNITS, 1989 MSC 63/23/Add.l
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.U.3 upon transfer of the unit to the flag of another State. A new certificate should only be issued when the Government issuing the new certificate is fully satisfied that the unit is in compliance with the requirements of 1.6.6.1 and 1.6.6.2. In the case of a transfer between Governments that are Contracting Governments to both 1974 SOLAS Convention and the 1966 Load Line Convention, if requested within three months after the transfer has taken place, the Government of the State whose

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SOURCE: MSC.38(63).pdf

the case of a transfer between Governments that are Contracting Governments to both 1974 SOLAS Convention and the 1966 Load Line Convention, if requested within three months after the transfer has taken place, the Government of the State whose flag the unit was formerly entitled to fly should, as soon as possible, transmit to the Administration a copy of the certificate carried by the unit before the transfer and, if available, copies of the relevant survey reports.

1.6.12 The privileges of the Code may not be claimed in favour of any unit unless it holds a valid certificate."

The text of "1.7 Control" should be replaced by the following :

"1.7.1 Every unit when in an area under the jurisdiction of another Government is subject to control by officers duly authorized by such Government in so far as this control is directed towards verifying that the certificate issued under 1.6 is valid.

1.7.2 Such certificate, if valid, should be accepted unless there are clear grounds for believing that the condition of the unit or its equipment does not correspond substantially with the particulars of the certificate or that the

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SOURCE: MSC.38(63).pdf

1.7.2 Such certificate, if valid, should be accepted unless there are clear grounds for believing that the condition of the unit or its equipment does not correspond substantially with the particulars of the certificate or that the unit and its equipment are not in compliance with the provisions of 1.6.6.1 and 1. 6 . 6 . 2 .

1.7.3 In the circumstances given in 1.7.2 or where the certificate has expired or ceased to be valid, the officer carrying out the control should take steps to ensure that the unit should not continue to operate (except, when appropriate, on a temporary basis) or leave the area for the purpose of proceeding to an area for repair without danger to the unit or persons on board.

1.7.4 In the event of this control giving rise to an intervention of any kind, the officer carrying out the control should forthwith inform, in writing, the consul or, in his absence, the nearest diplomatic representative of the State whose flag the unit is entitled to fly of all the circumstances in which intervention was deemed necessary. In addition, nominated surveyors or recognized organizations responsible for the issue of the certificates

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SOURCE: MSC.38(63).pdf

of the State whose flag the unit is entitled to fly of all the circumstances in which intervention was deemed necessary. In addition, nominated surveyors or recognized organizations responsible for the issue of the certificates should also be notified. The facts concerning the intervention should be reported to the organization.

1.7.5 When exercising control under this regulation all possible efforts should be made to avoid the operation of the unit being unduly interrupted or delayed. If a unit is unduly interrupted or delayed it should be entitled to compensation for any loss or damage suffered.

1.7.6 Notwithstanding the provisions of 1.7.1 and 1.7.2, the requirements of 1.6 are without prejudice to any rights of the coastal State under

international law to impose its own requirements relating to the regulation, surveying and inspection of units engaged, or intending to engage, in the exploration or exploitation of the natural resources of those parts of the sea-bed and subsoil over which that State is entitled to exercise sovereign rights" .
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RESOLUTION MSC.38(63)
(adopted on 19 May 1994)

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SOURCE: MSC.38(63).pdf
exploration or exploitation of the natural resources of those parts of the sea-bed and subsoil over which that State is entitled to exercise sovereign rights" .
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APPENDIX